

HOUSE BILL 2654

By Haston

AN ACT to amend Chapter 833 of the Private Acts of 1949; as amended by Chapter 171 of the Private Acts of 1957; Chapter 28 of the Private Acts of 1957; Chapter 122 of the Private Acts of 1975; and any other acts amendatory thereto, relative to the charter of the Town of Sardis.

BE IT ENACTED BY THE GENERAL ASSEMBLY OF THE STATE OF TENNESSEE:

SECTION 1. Chapter 833 of the Private Acts of 1949, as amended by Chapter 122 of the Private Acts of 1975, and any other acts amendatory thereto, is amended in SECTION 3 by deleting Subsection (20) and substituting the following:

20. [Deleted by 2026 Amendment]

SECTION 2. Chapter 833 of the Private Acts of 1949, as amended by Chapter 28 of the Private Acts of 1957, and any other acts amendatory thereto, is amended by deleting SECTION 5 and substituting the following:

SEC. 5. Be it further enacted, That the governing body of the Town of Sardis shall be known and designated as the Mayor and Board of Aldermen of the Town of Sardis. Said governing body shall consist of a Mayor and five (5) Aldermen not less than twenty-one (21) years of age and shall have resided within the limits of the Town of Sardis at least one (1) year, and clothed with all the powers vested by law in such officials, and they shall discharge all the duties incumbent upon them, as such officials from and after their induction into their offices as hereinafter provided for, and shall hold their offices until their successors are legally elected and qualified. All elected or employed officials of the Town shall take an oath before some person qualified to administer oaths, said oath to be in conformity with the oath prescribed by statute for public officials. In case of vacancy caused by death, resignation, removal or otherwise, of the Mayor or any member of the Board, the remaining members of the Board of

Aldermen and the Mayor shall elect some qualified persons, as hereinbefore provided, to fill said vacancy and to hold his/her office until the next regular election of the Town officials. The salary of the Mayor and members of the Board of Aldermen shall be set by ordinance by the Mayor and Board of Aldermen. The salary of the Mayor and Aldermen shall not be altered prior to the end of the term for which such person was elected. Immediately after being sworn into office as such officials the said Mayor and Board of Aldermen, shall meet at once and organize and assume charge of the affairs of the municipality and shall proceed to elect a Recorder and such other officers as the Board shall deem necessary, each of whom officials shall be employed by a majority vote of the Aldermen of the said Town.

The Mayor shall not be permitted to cast a vote as a member of the Mayor and Board of Aldermen except in case of a tie, when he shall then be required to cast the deciding vote of all cases of such ties. It shall also become the duty of the said Board to fix by ordinance the salaries of all officials employed by them, and they are hereby constituted with power to discharge any such official with or without cause when, in their judgment, such action appears to be in the best interest of the Town of Sardis. The Mayor and Board of Aldermen shall meet regularly at least once every month at the times and places prescribed by ordinance.

SECTION 3. Chapter 833 of the Private Acts of 1949, and any other acts amendatory thereto, is amended by deleting the first paragraph in SECTION 6 and substituting the following:

SEC. 6. Be it further enacted, That the Mayor and his/her successors in office shall preside over all meetings of the Board.

SECTION 4. Chapter 833 of the Private Acts of 1949, and any other acts amendatory thereto, is amended by deleting SECTION 11 and substituting the following:

SEC. 11. Be it further enacted, That the Recorder hereinbefore provided shall be empowered as follows and impressed with the following duties:

1. Said Recorder shall hold his/her office at the pleasure of the Board and until his/her successor is employed and is qualified.

2. Said Recorder may before entering upon the duties of his/her office enter into bond issued by some bonding company licensed to do business in the State of Tennessee, and signed by a resident agent of the Town of Sardis, premium on said bond to be paid from the funds of the Municipality, the amount of the bond to be determined by the Mayor and Board of Aldermen, and in no case to be less the Two Thousand Dollars (\$2,000); bond to be filed with the Mayor and entered of record on the minute book in the Recorder's Office.

3. The Recorder shall receive such compensation from the Municipality as allowed by the Mayor and Board of Aldermen by proper ordinance.

SECTION 5. Chapter 833 of the Private Acts of 1949, and any other acts amendatory thereto, is amended by deleting SECTION 13 and substituting the following:

SEC. 13. Be it further enacted, That only the offices and positions of employment provided for in the annual budget, as approved by the Mayor and Board of Aldermen, shall be filled unless an emergency that demands the immediate filling of a position arises. In determining salaries, due consideration shall be given to duties, responsibilities, technical knowledge and skill required to satisfactorily perform the work, and availability of persons having the qualifications desired.

SECTION 6. Chapter 833 of the Private Acts of 1949, and any other acts amendatory thereto is amended by deleting SECTION 14 and substituting the following:

SEC. 14. Be it further enacted, That the Mayor and Board of Aldermen shall have authority to appoint, promote, transfer, demote, suspend and remove employees and may delegate such authority as the Board deems advisable.

SECTION 7. Chapter 833 of the Private Acts of 1949, as amended by Chapter 28 of the Private Acts of 1957, and any other acts amendatory thereto is amended by deleting SECTION 15 and substituting the following:

SEC. 15. Be it further enacted, That the Election Commissioners of Henderson County, Tennessee, shall open and legally hold an election, after first giving notice thereof in a newspaper published in Henderson County, Tennessee, as provided by law. The first election shall be held within lawful hours and under all legal regulations and restrictions on the first Thursday in August, 2026, at which first election the Mayor and five (5) Aldermen herein provided for shall be elected; and every four (4) years thereafter, on the first Thursday in August, and in the manner aforesaid, there shall be held by the duly constituted election authorities of Henderson County, Tennessee, an election for Mayor and five (5) Aldermen, who shall hold their offices for four (4) years and until their successors are duly elected and qualified. All legal qualified voters living within the Municipality shall be entitled to vote in the election of Mayor and Aldermen. In addition, those persons who do not live within the corporate limits of the said Municipality but who own real estate at a taxable rate of One Hundred (\$100.00) Dollars, which is in the corporate limits of the said Municipality, shall be entitled to vote in the election of Mayor and Aldermen; provided, however, that, no more than two (2) persons shall be entitled to vote based upon the ownership of an individual tract of property regardless of the number of property owners. Said Mayor and Board of Aldermen elected at the first election as hereinbefore provided, and at all subsequent quadrennial elections thereof, shall qualify on or before the succeeding first Monday in September, at which time the newly elected Board shall meet, organize, and begin the discharge of their duties.

SECTION 8. Chapter 833 of the Private Acts of 1949, and any other acts amendatory thereto is amended by deleting SECTION 17 and substituting the following:

SEC. 17. Be it further enacted, That the said Town of Sardis shall exercise and have all other powers, functions, rights, privileges, and immunities granted by general laws or necessary or desirable to promote or protect the safety, health, peace, security, good order, comfort, convenience, morals, and general welfare of the town and its inhabitants, and all implied powers necessary to carry into execution all powers granted

in this Charter as fully and completely as if such powers were enumerated herein. No enumeration of particular powers in this Charter shall be held to be exclusive of others nor restrictive of general words and phrases granting powers but shall be held to be in addition to such powers unless expressly prohibited to cities by the constitution or general laws of the State.

SECTION 9. This act shall have no effect unless it is approved by a two-thirds (2/3) vote of the legislative body of the Town of Sardis. Its approval or nonapproval shall be proclaimed by the presiding officer of the legislative body and certified to the secretary of state.

SECTION 10. For the purpose of approving or rejecting the provisions of this act, it shall be effective upon becoming a law, the public welfare requiring it. For all other purposes, it shall become effective as provided in Section 9.